

**RESOLUTION DECLARING TRANSPORTATION
IMPRACTICAL FOR THE 2023-2024 SCHOOL YEAR**

The Board of Education of the Brecksville-Broadview Heights City School District, Cuyahoga County, met in regular session this 27th day of September 2023, with the following members present:

_____ moved and _____ seconded the adoption of the following resolution:

WHEREAS, pursuant to section 3327.02 of the Revised Code, the Board of Education of the Brecksville-Broadview Heights City School District (“Board” or “Board of Education” or “District”) may determine that it is impractical to transport a pupil who is eligible for transportation to and from a school under section 3327.01 of the Revised Code after considering each of the following factors:

1. The time and distance required to provide the transportation
2. The number of pupils to be transported
3. The cost of providing transportation in terms of equipment, maintenance, personnel, and administration
4. Whether similar or equivalent service is provided to other pupils eligible for transportation
5. Whether and to what extent the additional service unavoidably disrupts current transportation schedules; and
6. Whether other reimbursable types of transportation are available

WHEREAS, in accordance with section 3327.02 of the Revised Code, the Board shall report its determination to the Ohio Department of Education and shall further issue a letter to the pupil’s parent, guardian, or other person in charge of the pupil, as well as issue a letter to the nonpublic or community school in which the pupil is enrolled with a detailed description of the reasons for which such determination was made; and

WHEREAS, after a determination declaring the impracticality of transportation is made pursuant to this Resolution, the Board shall offer to provide payment in lieu of transportation by informing the pupil’s parent, guardian, or other person in charge of the pupil of this Resolution and of the right of the pupil’s parent, guardian, or other person in charge of the pupil to accept the offer of payment in lieu of transportation or reject the Board’s offer of payment in lieu of transportation.

NOW, THEREFORE, BE IT RESOLVED based on the Board’s consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending the Al-Ihsan School listed in Exhibit A, determined on an individual and case-by-case basis, based on: (1) there is only one student who requested transportation;

(2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the hiring and training of a new bus driver, fuel and maintenance; and (3) the school's bell schedule conflicts with the District's current routed public and non-public routes and will cause connecting routes to be late.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending Benedictine High School as listed in Exhibit B, determined on an individual and case-by-case basis, based on: (1) there is only one student who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending Birchwood School of Hawken as listed in Exhibit C, determined on an individual and case-by-case basis, based on: (1) there are only four students who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending Cuyahoga Valley Christian Academy as listed in Exhibit D, determined on an individual and case-by-case basis, based on: (1) there are only two students who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending Heritage Classical Academy as listed in Exhibit E, determined on an individual and case-by-case basis, based on: (1) there are only six students who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending Holy Family School as listed in Exhibit F, determined on an individual and case-by-case basis, based on: (1) there are only two students who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the

costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending Holy Name High School as listed in Exhibit G, determined on an individual and case-by-case basis, based on: (1) there are only four students who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending Incarnate Word Academy as listed in Exhibit H, determined on an individual and case-by-case basis, based on: (1) there are only four students who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending Julie Billiart, Westlake campus, as listed in Exhibit I, determined on an individual and case-by-case basis, based on: (1) there is only one student who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending Julie Billiart, Akron campus, as listed in Exhibit J, determined on an individual and case-by-case basis, based on: (1) there is only one student who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending Lawrence Upper School as listed in Exhibit K, determined on an individual and case-by-case basis, based on: (1) there are only five students who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule

conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending Magnificat High School as listed in Exhibit L, determined on an individual and case-by-case basis, based on: (1) there are only eight students who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending Padua Franciscan High School as listed in Exhibit M, determined on an individual and case-by-case basis, based on: (1) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (2) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending St. Barnabas as listed in Exhibit N, determined on an individual and case-by-case basis, based on: (1) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (2) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending St. Charles Borromeo School as listed in Exhibit O, determined on an individual and case-by-case basis, based on: (1) there are only eight students who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending St. Columbkille School as listed in Exhibit P, determined on an individual and case-by-case basis, based on: (1) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (2) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending St. Edward High School as listed in Exhibit Q, determined on an individual and case-by-case basis, based on: (1) there is only one student who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending St. Hilary School as listed in Exhibit R, determined on an individual and case-by-case basis, based on: (1) there are only three students who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending St. Ignatius High School as listed in Exhibit S, determined on an individual and case-by-case basis, based on: (1) there are only seven students who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that based on the Board's consideration of the above-stated factors set forth in section 3327.02 of the Revised Code, as well as the specific factors listed in this paragraph, the Board of Education hereby declares transportation impractical for the 2023-2024 school year via this Resolution for the pupils attending St. Joseph Academy as listed in Exhibit T, determined on an individual and case-by-case basis, based on: (1) there is only one student who requested transportation; (2) the cost to the District will be approximately \$48,000 per year to run an additional bus, which includes the costs of hiring and training a new bus driver, fuel and bus maintenance; (3) the school's bell schedule conflicts with the District's schedule and would require the District to re-route its own students which would cause one or more of the District's routes to be over an hour long.

BE IT FURTHER RESOLVED that the Brecksville-Broadview Heights City School District hereby offers the parent, guardian, or other person in charge of the pupil payment in lieu of providing transportation, and hereby directs the Superintendent and Treasurer or designee(s) to provide notification to the parent, guardian, or other person in charge of the pupil of the Board's determination and of the right to accept or reject this offer as set forth herein and in accordance with section 3327.02 of the Revised Code.

BE IT FURTHER RESOLVED that it is hereby found and determined that all formal actions of the Board concerning and relating to the adoption of this Resolution were adopted in an open meeting of the

Board, and that all deliberations of the Board and any of its committees that resulted in such formal action were open to the public when required by law, in full compliance with the law.

UPON ROLL CALL, on passage of the foregoing resolution, the vote was as follows:

	<u>Yea</u>	<u>Nay</u>
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____

Exhibit A – Il-Ihsan School

1. Leena Haasan

Exhibit B – Benedictine High School

1. Robert Scoville

Exhibit C – Birchwood School of Hawken

1. Aarau Ahuja
2. Eshan Krish Karunagaran
3. Alexander Tad-y
4. Charlotte Tad-y

Exhibit D – Cuyahoga Valley Christian Academy

1. Jonier Geris
2. Jessie Geris

Exhibit E – Heritage Classical Academy

1. Colette Chen
2. Elinor Chen
3. Claire Newman
4. Jack Newman
5. Jeremiah Zaccardelli
6. Micah Zaccardelli

Exhibit F – Holy Family School

1. Makenzie Csank
2. Madison Csank

Exhibit G – Holy Name High School

1. Cecilia Gordan
2. Paul Gordan
3. Thomas Gordan
4. Dominick Marchetta

Exhibit H – Incarnate Word Academy

1. Harleen Kufleitner
2. Sofia Milev
3. Cohen Vitaz
4. Lucy Vitaz

Exhibit I – Julie Billiard (Westlake)

1. Olivia Giancola

Exhibit J – Julie Billiard (Akron)

1. Jackson Zaccardelli

Exhibit K – Lawrence Upper School

1. Emma Apanasewicz
2. Evelyn Duffy
3. Cracie Horgan
4. Cameron Taylor
5. Kaitlyn Wilson

Exhibit L – Magnificat High School

1. Adriana Carcioppolo
2. Allegra Carcioppolo
3. Alexandria Daprano
4. Camryn Dzina
5. Marlo Hankins
6. Keira Leneghan
7. Anna Toman
8. Grace Yonan

Exhibit M – Padua Franciscan High School

1. Carter John Domo
2. Lili Freilino
3. Sophia Hill
4. Audrey Malcuit
5. Julia Malcuit
6. Christian Mandat
7. Gabriella Marchak
8. Lucas Palange
9. Sophia Yonan
10. Katherine Zmich
11. Daniel Allen

Exhibit N – St. Barnabas

1. Jack Briggs
2. Kate Briggs
3. Sam Briggs
4. Logan Cordiano
5. Landon Dooley
6. Natalie Iacoboni
7. Nora Iacoboni
8. Calvin Janki
9. Louis Janki
10. Elle Rote
11. Juliette Rote
12. George Tagliaferro
13. Jack Tagliaferro
14. William Walko

Exhibit O – St. Charles Borromeo School

1. Irena Gordan
2. Marcus Gordan
3. Michael Gordan
4. Simon Gordan
5. Blake Heston
6. Devon Heston
7. Gwendolyn Heston
8. Logan Heston

Exhibit P – St. Columbkille School

1. Michael Govang
2. Ryan Davidson
3. John Borowy
4. Giulia Reginelli
5. Gianni McIntyre
6. Elizabeth Radd
7. Brody Strzalka
8. Teagen McIntyre
9. Gabriel Sidor
10. Jackson Spicuzza
11. Carter Palange
12. Molly Palange

Exhibit Q – St. Edward High School

1. John Zaccardelli

Exhibit R – St. Hilary School

1. Liliana Perozeni
2. Mia Perozeni
3. Astella Tartabini

Exhibit S – St. Ignatius High School

1. Vikram Braum
2. Grant Carney
3. Rafael Fini
4. John Hinchman
5. Drew Kneblewicz
6. Daniel Lang
7. Jacob Merheb

Exhibit T – St. Joseph Academy

1. Gianna Reginelli